

BNS 2023

Bharatiya Nyaya Sanhita, 2023

Bharatiya Nyaya Sanhita (BNS), 2023

User Query :

A shop near my home has CCTV footage showing a person stealing my motorcycle. The shopkeeper copied the relevant video from the CCTV system onto a pen drive and gave it to me. The accused now claims that the video could have been edited or modified after it was copied. What legal provisions apply to proving and admitting this footage as electronic evidence?

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Prepared by : NyaySahayak

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NyaySahayak

AI-Powered Legal Intelligence Platform

✓ STRENGTHS & RIGHTS

1

Victim's Right to Evidence

The shopkeeper's act of copying CCTV footage for the victim's use is legally permissible under **Section 65B** (1) of the IEA (if the certificate is filed).

2

Presumption of Authenticity

If the shopkeeper provides a **Section 65B** certificate (stating the pen drive copy matches the original CCTV), the court **presumes** the evidence is genuine (IEA, **Section 65B** (2)).

3

No Liability for Victim

The victim is not liable under BNS for receiving the copy. BNS Sections 225-238 apply only to **intentional falsehood**, not to good-faith evidence collection.

✗ RISKS & OBLIGATIONS

1

No BNS Offense

The accused's claim of "editing" does not constitute a BNS violation (e.g., **Section 226**).

2

Factual Challenge Only

If the court finds the evidence **unauthenticated** (e.g., no **Section 65B** certificate), the accused wins on **evidence**, not due to a BNS offense.

3

Risk of Perjury

If the accused **deliberately lies** about the footage being edited **in court**, they could face BNS **Section 225** (giving false evidence), but this is not the current scenario.

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